

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Adverse Judgment

Entered May 22, 2026

In accordance with the opinion filed this date, the Court exercises interlocutory jurisdiction under 28 U.S.C. § 1292(a)(1). The passage of two dates in the Piedmont Booksellers Guild's announced 2026 series does not moot the appeal because the same Guild remains subject to the same operative permit rule for four additional fairs. The City of Norvale's request to dismiss the controversy as moot is denied.

The district court's January 23, 2026, order granting a preliminary injunction is reversed. The Guild did not clearly establish on the present record the likelihood of success, irreparable injury, favorable balance of equities, and public interest necessary for preliminary relief. The cause is remanded to the United States District Court for the District of South Carolina for continued proceedings on the unresolved complaint consistent with the opinion.

The Court does not enter final judgment on the constitutionality of Ordinance N-2025-18, adjudicate damages, or foreclose consideration of a later application supported by materially different facts. Paid literary presentations remain protected expression, and the City remains bound by the ordinance's prohibition on viewpoint discrimination and its requirement of written, operational reasons for conditions or denials.

The City's separate request for a limited corrective remand under Federal Rule of Civil Procedure 65(c) and 65(d) is denied. Because preliminary-injunction entitlement has been reversed, no continuing interim order remains to be preserved while its security determination or operative wording is corrected. Any new injunctive relief entered on remand must independently comply with the governing rules.

This judgment does not itself resolve when the appellate mandate will issue and does not create a stay apart from the effect supplied by the Federal Rules of Appellate Procedure. The district court shall resume authority over proceedings governed by the mandate when that instrument issues. Counsel shall preserve the municipal permit record and any materials relevant to the unresolved merits.

Each side shall bear its own appellate costs. The Clerk shall transmit notice of this judgment to counsel and calculate any rehearing and mandate deadlines from the entry date under the applicable rules. A party seeking further relief must file a proper motion or petition; correspondence with chambers will not alter this judgment.

Entered May 22, 2026, at the direction of the panel. The disposition is: preliminary injunction reversed; recurring-events mootness request denied; cause remanded for further proceedings; separate Rule 65 corrective-remand request denied.